

6. 23CV01923 Greenberg, Stuart et al v. Jacques, Michael et al

EVENT: Plaintiffs' Third Motion to Compel Further Responses to Request for Production of Documents, Set One to AOIS and Request for Production of Documents Sets One and Two to Michael Jacques

Preliminarily, with respect to the general objections interposed in Defendant's supplemental response, those objections were improper in the context of this discovery dispute. This discovery dispute has been lingering since 2024. Our ruling in 2024 was not an invitation for Michael Jacques to interpose new objections. Rather, our ruling in 2024, to the extent it granted the original motion, was to require Defendant to provide further substantive responses.

Pursuant to CCP 436(b), the general objections interposed with the supplemental response are stricken as they were made not in conformity with a court order.

As to the merits of the motion, the propounding party is essentially accusing responding party of withholding documents despite responding party's statement under penalty of perjury that all documents have been provided or that no documents exist. Unfortunately, neither the code nor published authority provides courts with guidance on how to address such disputes.

It has been this Court's policy in the past to refrain from adjudicating such disputes in the context of a discovery motion. This does not preclude Plaintiff from revisiting the issue at trial. If Plaintiffs were to persuade the trier of fact that documents have been withheld, then there would be legal consequences resulting from that finding.

Hypothetically, if the Court was to make a finding at this stage that Defendant was withholding documents, that would necessarily invoke evidentiary, issue, and perhaps terminating sanctions. Thus, the Court would be making a dispositive type ruling based on a he said, he said, dispute. In this Court's view, such a drastic ruling at this stage would undermine the liberal policy favoring trial on the merits and resolving fundamental factual disputes at trial.

As a result, the motion is denied in all other respects. Defendant and defense counsel are sanctioned (jointly and severally) in the amount of \$1,000 for interposing the general objections. Additionally, in light of the fact Defendant produced hundreds of documents after this motion was filed, Defendant is sanctioned an additional \$3,500 for discovery abuse.

Lastly, the Court is aware that another discovery motion is scheduled for June 10, 2026 at 9:00am. The Court is inclined to refer all subsequent discovery disputes to a referee. Counsel shall meet and confer on the selection of a discovery referee. Counsel shall file a status report no later than June 1, 2026.

If counsel reach an agreement on a referee they shall file a proposed stipulation and order with the Court. The proposed order should comply with Local Rule 2.14. In the event counsel cannot agree on a discovery referee the Court will select one. Presently, the Court is considering the following candidates:

Douglas B Jacobs SBN 84153
20 Independent Circle
Chico, CA 95973
(530) 342-6144

James J. Thompson SBN 63003
1660 Humbolt Rd.
Chico, CA 95928
(530) 343-3695
The Court will prepare the order.

7-8. 24CV01908 Bryant, Jina v. Hodari MD Dermatology, Inc et al.

EVENT: (1) Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One, and for Sanctions

(2) Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One

In light of the supplemental responses, the motions are moot. As to the question of sanctions, the issue boils down to whether the 10-day extension provided by Plaintiff's counsel was reasonable. Under the circumstances the Court finds that it was. Importantly, the initial boiler plate objection only responses were obviously deficient. The discovery requests appear to be appropriate and at least some sort of substantive response should have been provided initially. Because the original responses were so deficient, this minimizes the obligation to provide a generous extension in this Court's view.

Additionally, the fact trial is on the horizon militates against any type of lengthy extension. Lastly, Defendant waited until the day before the extension expired to seek essentially a second extension. Under these circumstances, the Court finds Plaintiff was not premature in filing this motion. Defendant is sanctioned in the total sum of \$1,500 payable within 20 days of this order.

Plaintiff shall prepare the form of order.